

		pay the arbitration fees required for the arbitrations with Petitioners and several other former employees. The evidence Respondent presents, however, is not sufficient to establish its inability. Respondent presents evidence regarding its net losses and declining revenues, but a more complete picture is necessary. Moreover, an opposition to the request for an order to show cause is not the time to disprove willfulness or to establish an inability to comply. Rather, the evidentiary hearing on the order to show cause is where those issues are to be heard and decided. The declaration/affidavit is sufficient and therefore the request for an order to show cause is GRANTED as more fully set forth below. Finally, Petitioners again request attorney fees as a sanction under Code of Civil Procedure section 128.5. That request is again DENIED WITHOUT PREJUDICE. Respondent's conduct in disregarding the court's order have not yet been proven to be in bad faith or solely for purposes of delay. Moreover, there may be other more appropriate authority for the sanctions request, such as Code of Civil Procedure section 1218, subdivision (a), addressing contempt, or Code of Civil Procedure section 1281.99. Based on the foregoing, the court will issue an order to show cause directing Respondent to appear on <u>Thursday, October 22, 2026, at 2:00 p.m., in Department C23</u>, to show cause as to why it should not be held in contempt of court for failing to comply with the courts March 19 and 26, 2026 orders. Respondent's evidentiary objections (ROA 98) are OVERRULED. Petitioners are ordered to give notice and submit a proposed order to show cause consistent with this ruling.
9.	<i>Blain vs. Clear Vision Financial, LLC</i> <i>2025-01529475</i>	Before the court is the motion of petitioners Nicole Blain and Sylvia Melkonian (collectively, Petitioners) for (1) an order enforcing March 26, 2026 order compelling payment of arbitration fees, (2) an order to show cause re contempt, and (3) an award of attorney fees and costs incurred in enforcing the court's order. This relief is sought against respondent Clear Vision Financial, LLC dba Liberty 1 Financial (Respondent). As more fully set forth below, the motion is GRANTED IN PART and DENIED IN PART. On March 19, 2026, the court granted Petitioner's motion for an order pursuant to Code of Civil Procedure section 1281.98, subdivision (b), for an order compelling Respondent to pay the fees and costs of the arbitration

	required by the arbitration agreement Respondent drafted as Petitioners' employer. On March 26, 2026, the court signed an order requiring Respondent pay the arbitration fees to JAMS no later than 30 calendar days from the date the signed order was served. Petitioners bring this motion because Respondent has not paid the fees as ordered. Respondent acknowledges it has not paid the arbitration fees, but nonetheless argues this motion should be denied because Respondent has appealed the order requiring it to pay the arbitration fees and therefore the order is automatically stayed. Respondent also argues the motion should be denied because it lacks the financial ability to pay the arbitration fees required for the separate arbitrations with Petitioner and numerous other former employees, and therefore any violation is not willful. Petitioners argue the appeal does not affect the enforceability of the order because the order under section 1281.98 requiring Respondent to pay the arbitration fees is not an appealable order. Although there appears to be no reported California case addressing the appealability of such an order under section 1281.98, the court concludes the order is appealable under the collateral order doctrine. Under that doctrine, an exception to the one final judgment rules exists where there is a final determination on a collateral matter distinct and severable from the general subject of the litigation, and the determination requires the aggrieved party to immediately pay money or perform some other act. (<i>Lachkar v. Lachkar</i> (1986) 182 Cal.App.3d 641, 645, fn. 1, overruled by statute on a different issue as stated in <i>Benjamin, Weill & Mazer v. Kors</i> (2011) 195 Cal.App.4th 40; <i>Acosta v. Kerrigan</i> (2007) 150 Cal.App.4th 1124, 1128, fn. 4.) The collateral order doctrine has been applied in the arbitration context to allow an appeal from an order requiring a party to pay an arbitration filing fee. (<i>Spence v. Omnibus Industries</i> (1975) 44 Cal.App.3d 970.) In <i>Spence</i>, the Court of Appeal held the order requiring a party to pay the arbitration filing fee was appealable as a collateral order directing the payment of money even though orders compelling arbitration generally are not appealable. (<i>Id.</i> at p. 976.) Obviously, the ultimate determination regarding appealability will be made by the Court of Appeal. Respondent argues the court cannot grant any of the relief sought by this motion because their appeal from the court's order gave rise to an automatic stay preventing enforcement. Respondent equates an order under section 1281.98, subdivision (b), to pay arbitration fees
--	---

	with a mandatory injunction, which is automatically stayed on appeal without the need to post a bond. Again, there appears to be no California authority directly addressing this point, but the court concludes there is no stay absent the posting of a bond pursuant to Code of Civil Procedure section 917.1, subdivision (a)(1). That section provides, “Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: [¶] (1) Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.” An order under section 1281.98, subdivision (b), compelling an employer to pay arbitration fees is an order directing the payment of money. It commands the employer to pay a specific sum to the arbitration provider or as otherwise directed by the trial court. Here, Respondent has not posted a bond and therefore the court concludes there is no stay. Having addressed these foundational arguments by the parties, the court now addresses the specific relief sought by Petitioners. First, Petitioners ask the court to issue another order compelling Respondent to pay the arbitration fees—this time within 48 hours. The court DENIES this request. There is no need for an additional order compelling Respondent to pay the arbitration fees. Petitioners already have an order compelling Respondent to pay the fees. An additional order would be redundant. Indeed, what is the court to include in such an order . . . a statement the court really means it this time? Petitioners have not identified any reason the current order is not sufficient. Petitioners next seek an order to show cause re contempt for Respondent’s failure to comply with the earlier order. Given the alleged violation of the court’s order did not take place in the court’s presence, this would be an indirect contempt. Indirect contempt proceedings are initiated by submitting an affidavit or declaration to the court setting forth “the facts constituting the contempt.” (Code Civ. Proc., § 1211, subd. (a).) This affidavit or declaration is like a complaint in a criminal case; it frames the issues and must charge facts which show a contempt has been committed. (<i>Reliable Enterprises, Inc. v. Superior Court</i> (1984) 158 Cal.App.3d 604, 616.) A sufficient affidavit or declaration is a jurisdictional prerequisite to a contempt proceeding and without one any contempt order is void. (<i>In re Koehler</i> (2010) 181 Cal.App.4th 1153, 1169.) The
--	---

	party seeking contempt must plead each element of the contempt with facts, not conclusions. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2025) at 9:714.) The elements that must be factually alleged to support issuance of an OSC re contempt are "(1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience." (<i>Conn v. Superior Court</i> (1987) 196 Cal.App.3d 774, 784.) The issuance of an order to show cause re contempt commences a separate action on the contempt charges entitling the accused to a full and fair hearing that satisfies due process. (<i>In re. M.R.</i> (2013) 220 Cal.App.4th 49, 58.) Among other things, that requires the order to show cause, the affidavit, and all other supporting documents to be personally served on the party to be held in contempt. (<i>Koehler v. Superior Court</i> (2010) 181 Cal.App.4th 1153, 1169; Code Civ. Proc., §§ 1015, 1016.) A court lacks jurisdiction to proceed with a contempt hearing unless an affidavit and order to show case are personally served on an accused contemner; the purpose of personal service is to give the court a basis for asserting personal jurisdiction over the accused contemner. (<i>In re. M.R.</i> (2013) 220 Cal.App.4th 49, 58; <i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1287 & fn. 6.) The facts set forth in the motion and supporting declaration, as well as the reasonable inferences drawn from those facts, adequately establish the four elements of contempt and support the issuances of an order to show cause. Moreover, Code of Civil Procedure section 1281.99, subdivision (b)(3) authorizes contempt for violations of an order under section 1281.98, subdivision (b). In opposition, Respondent does not challenge the adequacy of Petitioners' declaration. Rather, Respondent contends an order to show cause should not be issued because its conduct is not willful. Respondent asserts it is not able to pay the arbitration fees required for the arbitrations with Petitioners and several other former employees. The evidence Respondent presents, however, is not sufficient to establish its inability. Respondent presents evidence regarding its net losses and declining revenues, but a more complete picture is necessary. Moreover, an opposition to the request for an order to show cause is not the time to disprove willfulness or to establish an inability to comply. Rather, the evidentiary hearing on the order to show cause is where those issues are to be heard and decided. The
--	---

		declaration/affidavit is sufficient and therefore the request for an order to show cause is GRANTED as more fully set forth below. Finally, Petitioners again request attorney fees as a sanction under Code of Civil Procedure section 128.5. That request is again DENIED WITHOUT PREJUDICE. Respondent's conduct in disregarding the court's order have not yet been proven to be in bad faith or solely for purposes of delay. Moreover, there may be other more appropriate authority for the sanctions request, such as Code of Civil Procedure section 1218, subdivision (a), addressing contempt, or Code of Civil Procedure section 1281.99. Based on the foregoing, the court will issue an order to show cause directing Respondent to appear on <u>Thursday, October 22, 2026, at 2:00 p.m., in Department C23</u>, to show cause as to why it should not be held in contempt of court for failing to comply with the courts March 19 and 26, 2026 orders. Respondent's evidentiary objections (ROA 99) are OVERRULED. Petitioners are ordered to give notice and submit a proposed order to show cause consistent with this ruling.
10.	<i>Martinez vs. FEIZ-EKBATANI</i> <i>2016-00884642</i>	Before the court is the Motion to Enforce Settlement Agreement filed by plaintiff Gerald Martinez (Plaintiff) against defendants Mehrdad Feiz-Ekbatani, Airmobile Technologies, Inc., and Coupzilla, Inc. (collectively, Defendants). As more fully set forth below, the motion is DENIED. This motion is brought pursuant to Code of Civil Procedure section 664.6. Plaintiff and Defendants have entered into three different agreements to resolve their disputes. The First Agreement was entered into February 21, 2017. The Second Agreement was entered into June 1, 2018. The Third Agreement was entered into March 3, 2025. The Third Agreement is referred to as a "first amendment to the second settlement agreement" and attached as Exhibit 4 to the Hall Declaration. Here, the motion states, "Plaintiff hereby moves the Court for entry of a money judgment against the Revised Defendants in the amount of \$89,000 plus an award of attorneys' fees and costs in the amount of \$9,864 in accordance with the terms of the Amendment. (Hall Decl., ¶¶ 16, 17.) [¶] Revised Defendants clearly failed to adhere to the payment schedule as set forth in the Amendment, which provides for the payment of \$174,000